

An Act

ENROLLED SENATE
BILL NO. 1733

By: Thompson and Hamilton of
the Senate

and

Lawson and Bashore of the
House

An Act relating to schools; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-401), which relates to student communications; requiring immediate notification to law enforcement of certain violations; updating statutory language; requiring public and private school employees to report certain disclosure, allegation, or information to law enforcement within certain time period; clarifying term; requiring certain officer to submit certain report under certain circumstances; requiring certain report to law enforcement prior to certain formal investigation or questioning; prohibiting school personnel from taking certain actions until law enforcement has been notified; providing exception; requiring certain information to be kept confidential or redacted; requiring public and private school employees to annually sign certain attestation; providing certain construction; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Schools

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-401), is amended to read as follows:

Section 6-401. A. As used in this section:

1. "Electronic or digital communication" includes, but is not limited to, emails, text messages, instant messages, direct messages, social media messages, messages sent through software applications, and any other electronic digital means of communication; and

2. "School personnel" means teachers, coaches, administrators, school bus drivers, or any other persons employed full-time or part-time by a public school or charter school.

B. School personnel engaging in electronic or digital communication with an individual student shall include the student's parent or legal guardian in any electronic or digital communication, unless such communication is on a school-approved platform and related to school and academic communications.

C. Exceptions to the requirement in subsection B of this section may be made in case of an emergency, subject to subsequent notification to the parent or legal guardian. School personnel shall make reasonable efforts to use school-approved platforms, systems, or applications that allow automatic inclusion of parents or legal guardians in communications with students.

D. Schools shall provide training, developed by the State Department of Education, for school personnel on the student communication requirements of this section.

E. Any school personnel who is reported to be in violation of subsection B of this section shall be put on administrative leave while the school district investigates the incident and notifies the board of education. If the investigation finds that no misconduct occurred, the school personnel shall be reinstated and the incident shall be noted in the school personnel's employee file. If the investigation finds misconduct occurred, the school personnel shall be disciplined according to the school district board of education's policy, up to and including termination of employment, and the incident shall be reported to law enforcement pursuant to Section 1210.163 of ~~Title 70 of the Oklahoma Statutes~~ this title.

F. A school district or charter school shall immediately notify law enforcement of any violation of subsection B of this section involving sexual activity, sexual contact, or any other inappropriate or unlawful behavior pursuant to Section 1210.163 of this title.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1210.164 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. 1. In addition to any report required pursuant to Section 1210.163 of Title 70 of the Oklahoma Statutes, every public and private school employee having reason to believe, or receiving an allegation or disclosure, that a student is the victim of sexual abuse, sexual assault, or sexual misconduct, shall report the disclosure, allegation, or information within twenty-four (24) hours to local law enforcement.

2. For the purposes of this section, local law enforcement means a law enforcement agency that is independent of the public school district or private school, or a campus police department thereof, and shall not include a school resource officer employed by the public school district or private school unless directed by the independent law enforcement agency. When a school resource officer is utilized pursuant to this subsection, the officer shall submit a written report describing the circumstances and any actions taken to the independent law enforcement agency.

B. 1. Any disclosure or allegation made pursuant to this section shall be reported to law enforcement prior to any formal investigation by the public school district or its board of education or the private school or its governing body or questioning of the subject of the disclosure or allegation.

2. No school investigator, administrator, or official shall conduct formal interviews of the subject of the disclosure or allegation or engage in disciplinary proceedings until law enforcement has been notified and has had the opportunity to interview the involved parties, unless law enforcement determines that an immediate school response is necessary to protect student safety.

C. In reports required by subsection A of this section, local law enforcement shall keep confidential and redact any information identifying the reporting school employee unless otherwise ordered by the court. A school employee with knowledge of a report required by subsection A of this section shall not disclose information identifying the reporting school employee unless otherwise ordered by the court or as part of an investigation by local law enforcement or the State Department of Education.

D. In addition to the attestation required by Section 1210.163 of Title 70 of the Oklahoma Statutes, every public and private school employee shall annually sign an attestation acknowledging his or her responsibility to report suspected child abuse or neglect pursuant to this section. Failure to sign an attestation shall not relieve school personnel from the obligations created in this section or Section 1210.163 of Title 70 of the Oklahoma Statutes, nor shall such failure constitute a defense to criminal liability arising under Section 1-2-101 of Title 10A of the Oklahoma Statutes.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 20th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____